



Notification Waiver Determination

B.M.D. Holdings – Bajara Plant Hire and Stirling Contracting

Acquisition	B.M.D. Holdings Pty. Limited the ultimate holding company of BMD Group (the Acquirer) applied for a notification waiver in respect to its proposed acquisition of a minority equity position in each of Bajara Plant Hire Pty Ltd (Bajara) and Stirling Contracting Pty Ltd (a newly incorporated entity that will acquire the assets of the earthworks business currently owned by Stirling Earthworks Pty Ltd, Stirling) (together, the Target) by way of Share Purchase Agreement (Proposed Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 June 2026

Parties to the Acquisition	The Acquirer, BMD Group operates across civil construction, engineering design, residential and industrial land development, project management consultancy, landscape construction and maintenance, and building construction. Headquartered in Brisbane, it operates nationwide across Australia. Relevantly, 'BMD Constructions' is BMD Group's construction arm. It delivers complex infrastructure projects across sectors including defence, water and wastewater, transport, ports, aviation and renewable energy; through the provision of civil and building works for land development and associated infrastructure. BMD self-supplies both plant and equipment, and earthworks services but does not offer these services to third parties. The Target operates two businesses in the construction industry: 1. Bajara, which supplies civil construction and mining-specific plant and equipment for both wet and dry hire; and 2. Stirling, which supplies earthworks services. Also headquartered in Brisbane, the Target delivers small-to-medium-sized infrastructure and resources projects, predominantly in Queensland, and including to BMD.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is limited horizontal overlap between the parties in the supply of plant and equipment hire for civil construction and mining, or earthworks services in Queensland b. there are alternative suppliers of plant and equipment hire for civil construction and mining, and earthworks services in Queensland c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act